

## 22SMCV01554 22SMCV01554

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-27

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 27, 2026

CASE NUMBER

22SMCV01554

MOTION

Claim of Exemption

MOVING PARTY

Defendant Samrah Meints

OPPOSING PARTY

Plaintiff Shideh Rostami

MOTION

Defendant Samrah Meints ("Defendant") has filed a Claim of Exemption, seeking to exempt all of Defendant's earnings from a wage garnishment stemming from efforts of Plaintiff Shideh Rostami ("Plaintiff") enforce an unlawful detainer judgment. Plaintiff opposes the claim of exemption.

## ANALYSIS

Code of Civil Procedure section

706.051 provides that the portion of the judgment debtor's earnings that the judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family, including the judgment debtor's spouse, supported in whole or in part by the judgment debtor is exempt from levy.

Here, Defendant has provided a claim of exemption, signed under penalty of perjury, indicating that Defendant's gross monthly salary is \$5,192.32 and take-home pay is \$4,749.64. Defendant financially supports a spouse, co-Defendant John Meints Jr., and a daughter, Mackenzie Meints, age 18, neither of whom contributes to the household income.

(WG-007/EJ-165.) Defendant

further itemizes a total of \$17,876 in monthly expenses, including \$7,000 in monthly rent and maintenance expenses. Defendant

has also provided a list of household property and debts. (Code Civ. Proc., §§ 703.110, 703.115.) As such, Defendant has demonstrated that

Defendant's entire salary is necessary to support Defendant, Defendant's spouse, and Defendant's daughter.

This is consistent with Defendant's

prior claim of exemption from two years ago, which listed a gross monthly salary of \$6,152, take-home pay of \$4,665, and monthly expenses totaling \$13,601, including \$6,700 in monthly rent and maintenance expenses. (See Minute Order, Feb. 22, 2024.)

Plaintiff opposes the claim of

exemption on the grounds that Defendant's claim of exemption is not credible, because Plaintiff proffers no explanation as to how her monthly bills are being paid, seeing as they exceed her monthly household income by over \$13,000. Further, Plaintiff argues that Defendant's circumstances have materially changed because since the Court's prior order, Plaintiff's husband has obtained a Chapter 7 bankruptcy discharge.

Although the Court agrees that

Defendant's stated expenses far exceed Defendant's earnings, as previously explained, this is not, in itself evidence that Defendant's income or expenses are not as Defendant has declared them to be under penalty of perjury. If anything, the ensuing bankruptcy discharge corroborates that Defendant's income is insufficient to satisfy their monthly expenses.

Therefore,

Defendant has again demonstrated that Defendant's entire monthly take-home pay of \$4,749.64 is exempt as necessary to support Defendant, Defendant's spouse, and Defendant's daughter, and Plaintiff has not provided any evidence in rebuttal.

#### CONCLUSION AND ORDER

For the reasons stated, the Court grants Defendant's claim of exemption. Defendant has demonstrated Defendant's entire salary is exempt as necessary to support Defendant, Defendant's spouse, and Defendant's daughter.

The Clerk of the Court shall provide notice of the Court's ruling and file a proof of service regarding the same.

DATED: July 27, 2026 \_\_\_\_/s/\_\_\_\_

Michael  
E. Whitaker

Judge  
of the Superior Court